



CHAPTER 42.

An Act to amend the National Insurance (Industrial Injuries) Act, 1946, in relation to increases of disablement benefit under section fourteen of that Act.
[30th June 1948.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Section fourteen of the National Insurance (Industrial Injuries) Act, 1946, shall be amended in accordance with the next following subsection, and shall accordingly have effect as set out in the Schedule to this Act. Amendment of 9 & 10 Geo. 6. c. 62.

(2) In the said section fourteen—

(a) in subsection (1)—

(i) for the words "by eleven shillings and three-pence" there shall be substituted the words "by an amount not exceeding twenty shillings"; and

(ii) at the end of the subsection there shall be added the words "or if as the result of the relevant loss of faculty the beneficiary is and has at all times since the end of the injury benefit period been incapable of following the said occupation or any such employment as aforesaid";

(b) after subsection (2) there shall be inserted the following subsection:—

"(2A) Regulations may for the purposes of this section provide that a person shall not be treated as capable of following an occupation or employment

merely because of his working thereat during a period of trial or for purposes of rehabilitation or training or in other prescribed circumstances ” ;

(c) in subsection (3) for the words “ A beneficiary shall not be entitled to an increase of pension under this section for any period for which he is entitled to an unemployability supplement ” there shall be substituted the words “ An unemployability supplement and an increase of pension under this section shall not be payable for the same period ” ;

(d) at the end of subsection (4) there shall be added the words “ and the amount of the increase shall be determined by reference to the beneficiary’s probable standard of remuneration during the period for which it is granted in the insurable employments, if any, which are suitable in his case and which he is likely to be capable of following as compared with that in his regular occupation (within the meaning of subsection (1) of this section) ”.

(3) Section twenty-nine of the said Act (which limits the aggregate weekly rate of benefit payable for successive accidents, in the case of beneficiaries between the ages of seventeen and eighteen, to thirty-three shillings and ninepence apart from the increases mentioned in subsection (2) thereof) shall be amended as follows :—

(a) so much of the said subsection (2) as provides for disregarding increases under the said section fourteen in the case of beneficiaries between those ages shall not have effect ; and

(b) at the end of sub-paragraph (ii) of paragraph (a) of subsection (1) (which imposes the said limit of thirty-three shillings and ninepence) there shall be added the words “ apart from any increase of benefit under section fourteen of this Act, or forty-five shillings with any increase under that section ”.

Short title
and citation.

2. This Act may be cited as the National Insurance (Industrial Injuries) Act, 1948, and this Act and the National Insurance Acts, 1946, may be cited together as the National Insurance Acts, 1946 and 1948.

SCHEDULE.

Section 1.

SECTION FOURTEEN AS AMENDED.

14.—(1) The weekly rate of a disablement pension shall, subject to the following provisions of this section, be increased by an amount not exceeding twenty shillings, if as the result of the relevant loss of faculty the beneficiary—

(a) is incapable and likely to remain permanently incapable of following his regular occupation ; and

(b) is incapable of following employment of an equivalent standard which is suitable in his case ;

or if as the result of the relevant loss of faculty the beneficiary is and has at all times since the end of the injury benefit period been incapable of following the said occupation or any such employment as aforesaid.

(2) In the foregoing subsection—

(a) the reference to a person's regular occupation shall be taken as not including any subsidiary occupation of his ;

(b) the reference to employment of an equivalent standard shall be taken as not including employment other than insurable employment ;

and in assessing the standard of remuneration in any employment, including a person's regular occupation, regard shall be had to his reasonable prospects of advancement.

(2A) Regulations may for the purposes of this section provide that a person shall not be treated as capable of following an occupation or employment merely because of his working thereat during a period of trial or for purposes of rehabilitation or training or in other prescribed circumstances.

(3) An unemployment supplement and an increase of pension under this section shall not be payable for the same period ; and the weekly rate of a disablement pension, apart from any increase in respect of the need for constant attendance or in respect of a child or adult dependant, shall not by virtue of this section be increased above forty-five shillings.

(4) Subject to the last foregoing subsection, an increase of pension under this section shall be payable for such period as may be determined at the time it is granted, but may be renewed from time to time, and the amount of the increase shall be determined by reference to the beneficiary's probable standard of remuneration

during the period for which it is granted in the insurable employments, if any, which are suitable in his case and which he is likely to be capable of following as compared with that in his regular occupation (within the meaning of subsection (1) of this section).

(5) Regulations may make as respects a disablement gratuity provision corresponding to that made by this section as respects a disablement pension, and may include provision for payment of a pension in lieu of the gratuity.

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